

CITIZENSHIP

Constitution → statute → Assam → OCI → CAA → constitutional review

CURRENT LAW CHECKED 7 SEPTEMBER 2026

01 MEMBERSHIP AND RIGHTS

- Citizen-specific: Arts 15, 16, 19, 29
- Person-based: Arts 14, 20, 21, 25
- Vote is statutory; Art 30 says minorities
- Enemy-allen exception limited to Art 22(1)-(2)

TEXT CONTROLS STATUS

02 ONE CITIZENSHIP

- Citizenship = membership
- Domicile = permanent legal home
- Residence = factual presence
- Pradeep Jain: one Indian domicile; regional safeguards ≠ State citizenship

NO STATE CITIZENSHIP

03 ARTICLES 5-11

- Art 5: domicile + one connection
- Arts 6-7: Partition routes and exact dates
- Art 8: Indian origin abroad + registration
- Arts 9-10-11: disqualifier → continuity → Parliament

COMMENCEMENT ONLY

04 ACQUISITION MAP

- Birth · Descent · Registration
- Naturalisation · Incorporation
- Every route has date/category/procedure gates
- No automatic status from marriage, property, residence or identity card

FIVE ROUTES

05 BIRTH / DESCENT DATES

- Birth: 1950–1987 | 1987–2004 | post-2004
- Descent: pre/post 10 Dec 1992
- From 3 Dec 2004: registration/declaration controls
- Illegal-migrant and Section 3(2) exceptions stay distinct

DATE-SENSITIVE

06 LOSS WITH SAFEGUARDS

- Renunciation = declaration
- Termination = voluntary foreign citizenship
- Deprivation = category + ground + public good + procedure
- Birth/descent citizens outside Section 10(1) opening gate

CATEGORY FIRST

07 ASSAM / SECTION 6A

- Pre-1966 deemed citizen
- 1966–before 25 Mar 1971: register + 10-year vote exclusion
- Post-cut-off: no Section 6A protection
- 17 Oct 2024: 4:1 valid; implementation monitored

1971 ≠ 2014

08 OCI / NRI / PIO

- NRI = citizen abroad; OCI = foreign national
- PIO card merged into OCI in 2015
- 2021 notified facilities but no political membership
- 11 Aug 2025 cancellation notification: sentence/charge-sheet thresholds

OCI ≠ CITIZEN

09 CAA ELIGIBILITY

- 6 communities · 3 countries · 31 Dec 2014
- Exemption + application + proof + oath + grant
- Not automatic citizenship
- Protected Sixth Schedule tribal areas + Inner Line areas excluded

NOT AUTOMATIC

10 CAA PROCEDURE

- 11 Mar 2024 Rules: electronic committee process
- 19 Aug 2026 G.S.R. 742(E): specified Collector route
- S.O. 4583(E): pending applications transferred
- Procedure changed; statutory class and cut-off unchanged

PROCESS ≠ ELIGIBILITY

11 EQUALITY AND BOUNDARIES

- Article 14: comparator → differentia → nexus → arbitrariness
- Humanitarian defence vs under-inclusion/secularism challenge
- Citizenship ≠ foreigners/passport/refugee/domicile law
- 7 Sep 2026: operative; no located final CAA merits judgment

PENDING ≠ DECIDED

12 PYQ AND ANSWER SPINE

- 2018 Q12 and 2021 Q89: exact wording; keys withheld
- 32 originals: ABCD × 8; 128 unique option explanations
- 10/15/20 marks: claim → evidence → analysis → qualification
- Conclusion: equal membership + lawful control + non-arbitrary classification

EXACT KEY DISCIPLINE

INDIAN CITIZENSHIP IS CONSTITUTIONALLY FOUNDED, STATUTORILY ADMINISTERED AND JUDICIALLY REVIEWABLE.
Equal membership must coexist with lawful migration control, regional protection, diaspora access and non-arbitrary classification.